

CHAPTER 32.

An Act to amend the Outdoor Relief Friendly Societies Act, 1894. [15th August 1904.]

• **B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The discretion given by section one of the Outdoor Relief Friendly Societies Act, 1894, to the boards of guardians to take or not to take into consideration the amount received by a member of a friendly society when granting outdoor relief shall be limited as herein-after provided.

Limitation of discretion of boards of guardians in granting outdoor relief.
57 & 58 Vict. c. 25.

(2) In granting outdoor relief to a member of any friendly society, the board of guardians shall not take into consideration any sum received from such friendly society as sick pay, except in so far as such sum shall exceed five shillings a week.

2. This Act may be cited as the Outdoor Relief (Friendly Societies) Act, 1904.

CHAPTER 33.

An Act for approving and carrying into Effect a Convention between His Majesty and the President of the French Republic. [15th August 1904.]

WHEREAS His Majesty the King and the President of the French Republic have, subject to the approval of their respective Parliaments, concluded the Convention set out in the schedule to this Act, and it is expedient to give such approval :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The approval of Parliament is hereby given to the Convention set out in the schedule to this Act, and it shall be lawful for His Majesty the King to do everything which appears to His Majesty necessary or proper for carrying into effect that Convention.

Approval of Convention.

(2) Any sums payable by way of indemnity under the said Convention and any expenses to be incurred in carrying it into effect shall be defrayed out of moneys provided by Parliament.

2. This Act may be cited as the Anglo-French Convention Act, 1904.

Short title.

SCHEDULE.

CONVENTION SIGNED AT LONDON THE 8TH OF APRIL 1904.

His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India, and the President of the French Republic, having resolved to put an end, by a friendly Arrangement, to the difficulties which have arisen in Newfoundland, have decided to conclude a Convention to that effect and have named as their respective Plenipotentiaries :

His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India, the Most Honourable Henry Charles Keith Petty-Fitzmaurice, Marquess of Lansdowne, His Majesty's Principal Secretary of State for Foreign Affairs ; and

The President of the French Republic, his Excellency Monsieur Paul Cambon, Ambassador of the French Republic at the Court of His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India ;

Who, after having communicated to each other their full powers, found in good and due form, have agreed as follows, subject to the approval of their respective Parliaments :—

ARTICLE I.

France renounces the privileges established to her advantage by Article XIII. of the Treaty of Utrecht and confirmed or modified by subsequent provisions.

ARTICLE II.

France retains for her citizens, on a footing of equality with British subjects, the right of fishing in the territorial waters on that portion of the coast of Newfoundland comprised between Cape St. John and Cape Ray, passing by the north ; this right shall be exercised during the usual fishing season closing for all persons on the 20th October of each year.

The French may therefore fish there for every kind of fish, including bait and also shell fish. They may enter any port or harbour on the said coast and may there obtain supplies or bait and shelter on the same conditions as the inhabitants of Newfoundland, but they will remain subject to the local Regulations in force ; they may also fish at the mouths of the rivers, but without going beyond a straight line drawn between the two extremities of the banks, where the river enters the sea

They shall not make use of stake-nets or fixed engines without permission of the local authorities.

On the above-mentioned portion of the coast, British subjects and French citizens shall be subject alike to the Laws and Regulations now in force, or which may hereafter be passed for the establishment of a close time in regard to any particular kind of fish or for the improvement of the fisheries. Notice of any fresh Laws or Regulations shall be given to the Government of the French Republic three months before they come into operation.

The policing of the fishing on the above-mentioned portion of the coast and for prevention of illicit liquor traffic and smuggling of spirits shall form the subject of Regulations drawn up in agreement by the two Governments.

ARTICLE III.

*A pecuniary indemnity shall be awarded by His Britannic Majesty's Government to the French citizens engaged in fishing or the preparation of fish on the "Treaty Shore," who are obliged either to abandon the establishments they possess there or to give up their occupation, in consequence of the modification introduced by the present Convention into the existing state of affairs.

This indemnity cannot be claimed by the parties interested unless they have been engaged in their business prior to the closing of the fishing season of 1903.

Claims for indemnity shall be submitted to an Arbitral Tribunal, composed of an officer of each nation, and, in the event of disagreement, of an Umpire appointed in accordance with the procedure laid down by Article XXXII of the Hague Convention. The details regulating the constitution of the Tribunal and the conditions of the inquiries to be instituted for the purpose of substantiating the claims shall form the subject of a special Agreement between the two Governments.

ARTICLE IV.

His Britannic Majesty's Government, recognising that, in addition to the indemnity referred to in the preceding Article, some territorial compensation is due to France in return for the surrender of her privilege in that part of the Island of Newfoundland referred to in Article II, agree with the Government of the French Republic to the provisions embodied in the following Articles:—

ARTICLE V.

The present frontier between Senegambia and the English Colony of the Gambia shall be modified so as to give to France Yarbutenda and the lands and landing places belonging to that locality.

In the event of the river not being open to maritime navigation up to that point, access shall be assured to the French Government at a point lower down on the River Gambia, which shall be recognized by mutual agreement as being accessible to merchant ships engaged in maritime navigation.

The conditions which shall govern transit on the River Gambia and its tributaries, as well as the method of access to the point that may be reserved to France in accordance with the preceding paragraph, shall form the subject of future agreement between the two Governments.

In any case, it is understood that these conditions shall be at least as favourable as those of the system instituted by application of the General Act of the African Conference of the 26th February, 1885, and of the Anglo-French Convention of the 14th June, 1898, to the English portion of the basin of the Niger.

ARTICLE VI.

The group known as the Iles de Los and situated opposite Konakry is ceded by His Britannic Majesty to France.

ARTICLE VII.

Persons born in the territories ceded to France by Articles V and VI of the present Convention may retain British nationality by means of an individual declaration to that effect, to be made before the proper authorities by themselves or, in the case of children under age, by their parents or guardians.

The period within which the declaration of option, referred to in the preceding paragraph, must be made shall be one year, dating from the day on which French authority shall be established over the territory in which the persons in question have been born.

Native laws and customs now existing will, as far as possible, remain undisturbed.

In the Iles de Los, for a period of thirty years from the date of exchange of the ratifications of the present Convention, British fishermen shall enjoy the same rights as French fishermen with regard to anchorage in all weathers, to taking in provisions and water, to making repairs, to transhipment of goods, to the sale of fish and to the landing and drying of nets, provided always that they observe the conditions laid down in the French Laws and Regulations which may be in force there.

ARTICLE VIII.

To the east of the Niger the following line shall be substituted for the boundary fixed between the French and British possessions by the Convention of the 14th June, 1898, subject to the modifications which may result from the stipulations introduced in the final paragraph of the present Article.

Starting from the point on the left bank of the Niger laid down in Article III of the Convention of the 14th June, 1898, that is to say the median line of the Dallul Mauri, the frontier shall be drawn along this median line until it meets the circumference of a circle drawn from the town of Sokoto as a centre, with a radius of 160,932 mètres (100 miles). Thence it shall follow the northern arc of this circle to a point situated 5 kilomètres south of the point of intersection of the above-mentioned arc of the circle with the route from Dosso to Mantankari via Maourédé.

Thence it shall be drawn in a direct line to a point 20 kilomètres north of Konni (Birni-N'Kouni), and then in a direct line to a point 15 kilomètres south of Maradi, and thence shall be continued in a direct line to the point of intersection of the parallel of $13^{\circ} 20'$ north latitude with a meridian passing 70 miles to the east of the second intersection of the 14th degree of north latitude and the northern arc of the above-mentioned circle.

Thence the frontier shall follow in an easterly direction the parallel of $13^{\circ} 20'$ north latitude until it strikes the left bank of the River Komadugu Waubé (Komadougou Ouobé), the thalweg of which it will then follow to Lake Chad. But, if before meeting this river the frontier attains a distance of 5 kilomètres from the caravan route from Zinder to Yo, through Sua Kololua (Soua Kololoua), Adeber and Kabi, the boundary shall then be traced at a distance of 5 kilomètres to the south of this route until it strikes the left bank of the River Komadugu Waubé (Komadougou Ouobé), it being nevertheless understood that, if the boundary thus drawn should happen to pass through a village, this village, with its lands, shall be assigned to the Government to which would fall the larger portion of the village and its lands. The boundary will then, as before, follow the thalweg of the said river to Lake Chad.

Thence it will follow the degree of latitude passing through the thalweg of the mouth of the said river up to its intersection with the meridian running $35'$ east of the centre of the town of Kouka and will then follow this meridian southwards until it intersects the southern shore of Lake Chad.

It is agreed, however, that, when the Commissioners of the two Governments at present engaged in delimiting the line laid down in Article IV of the Convention of the 14th June, 1898, return home and can be consulted, the two Governments will be prepared to consider any modifications of the above frontier line which may seem desirable for the

purpose of determining the line of demarcation with greater accuracy. In order to avoid the inconvenience to either party which might result from the adoption of a line deviating from recognized and well-established frontiers, it is agreed that, in those portions of the projected line where the frontier is not determined by the trade routes, regard shall be had to the present political divisions of the territories so that the tribes belonging to the territories of Tessaoua-Maradi and Zinder shall, as far as possible, be left to France and those belonging to the territories of the British zone shall, as far as possible, be left to Great Britain.

It is further agreed that, on Lake Chad, the frontier line shall, if necessary, be modified so as to assure to France a communication through open water at all seasons between her possessions on the north-west and those on the south-east of the Lake and a portion of the surface of the open waters of the Lake at least proportionate to that assigned to her by the map forming Annex 2 of the Convention of the 14th June, 1898.

In that portion of the River Komadugu which is common to both parties the populations on the banks shall have equal rights of fishing.

ARTICLE IX.

The present Convention shall be ratified, and the ratifications shall be exchanged at London, within eight months or earlier if possible.

In witness whereof his Excellency the Ambassador of the French Republic at the Court of His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India, and His Majesty's Principal Secretary of State for Foreign Affairs, duly authorized for that purpose, have signed the present Convention and have affixed thereto their seals.

CHAPTER 34.

An Act to explain and amend Section forty-eight of the Irish Land Act, 1903, with respect to the payment and application of the percentage provided by the said section.
[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Any land wholly or partly untenanted sold to the Land Commission or the Congested Districts Board may be regarded as an estate for the purpose of the payment of any percentage under section forty-eight of the Irish Land Act, 1903.

Amendment
of 3 Edw. 7.
c. 37. s. 48.
as to un-
tenanted land.

2. The percentage mentioned in the said section forty-eight may, subject to the enactments contained in the proviso to subsection one and in subsection four thereof, be paid to any vendor, other than the Congested Districts Board, whether such vendor is a person entitled to a beneficial interest in the land sold or is a trustee or other person not so entitled, and, save as herein-after

As to payment
and application
of percentage.